



POLICE DEPARTMENT

October 21, 2015

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Julio Jimenez
Tax Registry No. 948358
Manhattan Court Section
Disciplinary Case No. 2014-11908

The above-named member of the Department appeared before me on September 10, 2015, charged with the following:

1. Said Police Officer Julio Jimenez, while off-duty and assigned to the 42 Precinct, on or about May 31, 2014, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer did, after moving his vehicle, cause Person A to fall and suffer both abrasions to both knees and her right thigh and a contusion and pain to the back of her head. *(As amended)*

P.G. 203-10, Page 1, Paragraph 5 - PUBLIC CONTACT - PROHIBITED
CONDUCT - GENERAL REGULATIONS

2. Said Police Officer Julio Jimenez, while off-duty and assigned to the 42 Precinct on or about May 31, 2014, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer did move his vehicle while the rear door was open and while Person A was tending to their three (3) year old son. *(As amended)*

P.G. 203-10, Page 1, Paragraph 5 - PUBLIC CONTACT - PROHIBITED
CONDUCT - GENERAL REGULATIONS

3. Said Police Officer Julio Jimenez, while off-duty and assigned to the 42 Precinct, on or about May 31, 2014, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer did leave the scene after causing injury to Person A.

P.G. 203-10, Page 1, Paragraph 5 - PUBLIC CONTACT - PROHIBITED
CONDUCT - GENERAL REGULATIONS

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The Department was represented by Jessica Brenes, Esq., Department Advocate's Office, and Respondent was represented by Eric Sanders, Esq.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Specification No. 1: Respondent is found Guilty.

Specification No. 2: Dismissed.

Specification No. 3: Respondent is found Guilty.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

This case involves an incident that occurred on the afternoon of May 31, 2014. [REDACTED]
[REDACTED]. The Department alleges that Respondent, who was off-duty at the time, deliberately drove his car forward while Person A was leaning into the rear of the vehicle, causing her to fall to the ground and suffer multiple injuries. It also is alleged that Respondent then drove off from the scene, without attending to the complainant, who was 38-weeks pregnant at the time. In support of its allegations, the Department called Lieutenant Freddy Chalen, Sergeant Kimberly Motto, and Sergeant Fernando Loza as witnesses. The complainant, Person A, did not respond to phone calls or a subpoena left at her last known address; a transcript of her

statement to police on May 31, 2014, along with the recording itself, were admitted into evidence through the testimony of Sergeant Loza. (Dept. Exs. 3A and 3B)

Sergeant Loza, from the [REDACTED] Investigations Unit, testified that on the day of the incident, he went to Jacobi Hospital to interview the complainant. (Tr. 86-88) In that recorded interview, Person A stated that Respondent had come to the house to pick up their three-year-old son Person B. Inside the house, Respondent argued with Person A, who was 38-weeks pregnant, because Respondent was upset about an order of protection he believed she had against him; that order would prevent his being present for the birth of their child. (Dept. Ex. 3A, 2-5, 8-9, 16, 29, 36) Person A wasn't sure she even had the order, but an ACS counselor had suggested that she and Respondent each had orders against the other. (Dept. Ex. 3A, 34, 36-37) Earlier on the day of the incident, Respondent had texted Person A urging her to go to court to remove the order of protection. (Dept. Ex. 3A, 14)

Person A described how she then followed Respondent and their son to Respondent's car because she wanted to change Person B's shoes. After Respondent secured Person B in his car-seat, Person A and Respondent argued over feeding their son: she told Respondent that Person B had eaten two hours ago, so Respondent would have to feed him again, and Respondent became angry. (Dept. Ex. 3A, 24-26, 28-32) Person A then explained that while half her body was leaning into the rear of the car to change their son's shoes, Respondent slowly moved the car a short distance forward. Person A told him to stop and wait until she finished, at which point Respondent sped forward for a distance of about two houses, causing Person A to fall to the ground. (Dept. Ex. 3A, 5-8, 19-21, 27-

28, 38-40)¹

Respondent then stopped the car and exited; without offering to help Person A, he shut the rear passenger door, got back into the car and drove off, as Person A went back inside the house and called 911. (Dept. Ex. 3A, 9-10, 20, 26, 41) When asked whether camera footage would show events occurring as she described, Person A showed no hesitation in responding "sure." (Dept. Ex. 3A, 39)

In her conversation with Loza, Person A complained of pain to her legs and head, and was worried about the well-being of the child she was carrying. Loza noticed heavy black-and-blue marks and scratches to Person A's rear right thigh, knees, and right foot, and he also felt a "pretty big bump" on the back of her head; Loza took several photographs that illustrated these injuries. (Dept. Exs. 2A-2E; Tr. 89-90, 98) According to Loza, the injuries appeared to be fresh wounds. (Tr. 100-102) He did not, however, take any photographs of Person A's clothes, and could not recall their condition after the incident. (Tr. 103-107) The Department also introduced into evidence the Domestic Incident Report containing Person A's initial complaint for this incident; that report was essentially consistent with Person A's recorded oral statement. (Dept. Ex. 4)

When asked about an incident on May 23, 2014 where Respondent had her arrested, Person A explained that she didn't really assault Respondent; rather, she was the victim. She claimed that she called police, but since he had scratch marks on his neck police arrested her. (Dept. Ex. 3A, 11) Similarly, when she was arrested a year earlier, it was after Respondent had repeatedly slammed a door into her foot and then put her head against the wall. (Dept. 3A, 44-45)

¹Loza testified that Person A also told him she was "dragged" on the street when Respondent moved the car forward (Tr. 87); however, in her recorded statement, where we can hear her actual words, Person A described what happened as more of a fall.

Loza also testified that he spoke with Person C at the 45th precinct; Loza recounted the details of that interview from memory, since he took no notes. (Tr. 109) Person C, who was in the front passenger seat at the time of the incident, told him that Person A "was in the back of the car doing something with the child and she fell to the floor." (Tr. 83) Person C confirmed that Respondent and Person A were arguing regarding an order of protection (Tr. 84)

Sergeant Motto, Loza's partner, testified that she was familiar with Respondent and Person A from previous disputes between them. About a year before this incident, Motto handled a case where Respondent had Person A arrested for assault, but the charges were dropped due to Respondent's lack of cooperation. The sergeant also was aware of an incident on May 23, 2014, where Respondent again had Person A arrested for assault; that case also was dismissed. (Tr. 46-49) Motto testified that on June 14, 2014 she had a conversation with Dr. Lamstein, a department psychologist, who stated that she had spoken with Person A regarding prior complaints involving Person A and Respondent (that pre-dated this incident); Dr. Lamstein found Person A not to be credible, as her story was "all over the place." (Tr. 54-55) Motto stated that she, too, had questions about Person A's credibility. (Tr. 64)

On the day of this incident, Motto responded to the location and canvassed for witnesses, with negative results. Motto returned to the 45th precinct while her partner, Sergeant Loza, went to the hospital to interview the complainant. Respondent was notified to report to the precinct, where he was [REDACTED] suspended; [REDACTED] [REDACTED] (Tr. 41-45, 47)

Motto also testified that she spoke with Respondent in October 2014. Respondent confirmed that Respondent had come inside the house before the incident, but denied Person A's version of the events that followed. Specifically, he claimed that Person A had closed the rear door and walked to the front passenger window, where she and Respondent argued over feeding Person B, and then he drove away. (Tr. 57-58, 60-61)

Lieutenant Chalen testified that at about 1700 hours on May 31, 2014, he was requested to respond to [REDACTED] in connection with a domestic incident involving a member of the service. Upon his arrival, he met with Person A, who was being treated by EMS. Chalen observed a bandage on Person A's right knee and an ice-pack on her head, though he couldn't see the injuries themselves. (Tr. 20-22) Person A provided an account of the incident that was consistent with what she later told Loza at the hospital, though the statement at the scene was less detailed. (Tr. 22) Chalen acknowledged that he did not recall having spoken either with Respondent or Person C, who was in the front passenger seat of the car during the incident. (Tr. 28-29, 31)

Respondent's Case

Respondent, an officer for six years, testified on his own behalf. He recounted how he had Person A arrested for assault in 2013, and again a week before this incident; both times he dropped the charges. (Tr. 120-122) According to Respondent, shortly before this incident Person A had stated to Person C that she wanted to see Respondent "destroyed." (Tr. 119, 150) At no time did he receive any services from the Department as a domestic violence victim. (Tr. 122)

Respondent explained that he brought Person C with him on the day of the incident because he did not trust Person A. (Tr. 119) When they arrived at the house, which he owned but was now occupied by Person A and their three-year old son Person B, he sent Person C inside to get Person B. After about thirty minutes had passed without their return to the car, Respondent went to the backyard; Person B saw him and ran over. Respondent carried Person B to the car and secured him in the car-seat on the rear driver's side. Person C sat in the front passenger seat. (Tr. 123-125, 135-136)

Respondent testified that Person A came out to the car with a pair of sandals for Person B, who was wearing sneakers at the time. Person A leaned in from the rear passenger side and switched the child's shoes, and then closed the door. Person A then spoke to Respondent from outside the car through the front passenger window, though she did not speak with Person C; according to Respondent, they were not on good terms and tried to avoid talking with each other. Person A told Respondent that Person B had not eaten all day so he had to be fed. This angered Respondent, since he had used his money to buy them groceries the day before. He and Person A briefly argued about feeding Person B: Person A suggested he should just stay with her so she could feed him, but Respondent told her that he would take care of it. Respondent then shifted the car into first gear and started to drive off slowly, when Person A grabbed at the rear door trying to get in. Person C yelled for him to stop the car, and he pulled the emergency brake after traveling about five or six feet. Respondent ran out of the car to see if Person A was okay, but she stood up and ran inside the house. Respondent closed the car door and drove to his cousin's house. (Tr. 125-127, 138-147)

FINDINGS AND ANALYSIS

I find that the Department has proven by a preponderance of the evidence that Respondent knowingly drove his vehicle forward, aware that Person A was leaning inside the car at the time.

In proving its case, the Department relied heavily on the hearsay statements of Person A. Hearsay evidence is admissible in an administrative tribunal, and a case may be proven with such evidence provided it is found to be sufficiently reliable and probative on the issues to be determined. See *Ayala v. Ward*, 170 A.D.2d 235 (1st Dept. 1991); *In the Matter of 125 Bar Corp v. State Liquor Authority of the State of New York*, 24 N.Y.2d 174 (1969). To be sure, it is preferable to have testimony from a live witness, where opposing counsel has the opportunity to cross-examine, and the court can observe the demeanor of the witness. But where, as here, there is an audio recording of the witness, the court at least has the benefit of hearing the witness relate her account in her own voice. Having carefully listened to Person A's statement, and after comparing it with other evidence in the case, this tribunal finds her description of events to be credible.

The pivotal moment of this incident is the point where Respondent allegedly speeds forward while Person A has half of her body leaning into the car. During the course of her recorded interview, Person A was asked to recount the details of this moment several times. Additionally, she spoke with Lieutenant Chalen at the scene about it, and filled out a Domestic Incident Report summarizing that sequence of events as well. Throughout all of these statements, Person A remained essentially consistent in her description of events. She immediately reported the incident to police and gave a prompt account of what happened. In the recording of her statement from later the same day,

Person A sounds resolute in describing what occurred, with no trace of wavering and nothing to suggest that she's fabricating a story.

Additionally, the photographs in evidence corroborate Person A's account of what occurred. In particular, photographs 2B, 2C and 2D appear to depict scrape marks to Person A's right knee and upper rear thigh area. These injuries are consistent with the way in which Person A described her tumble from the moving vehicle. Loza provided similar corroboration with his testimony as to the injuries he observed, including feeling the "big bump" on the back of Person A's head.

In contrast, this tribunal does not credit Respondent's claim that Person A hurt herself by reaching for the closed car door as the vehicle was moving. It seems unlikely that Person A, 38-weeks pregnant at the time, would reach out at a moving car in that manner. Also, in her statement to Loza, even Person C acknowledged that Person A was tending to Person B in the rear of the car when the incident occurred.

Additional arguments raised by Respondent are similarly unpersuasive. Counsel suggested that in following Respondent and their son out to the car, Person A was provoking this encounter; however, this tribunal credits Person A's explanation that she merely went outside to change Person B's shoes, and nothing in the evidence supports a conclusion that she was trying to instigate an altercation. Respondent denied Person A's assertion that there was an argument inside regarding an order of protection, claiming he never even went inside the house. However, this tribunal finds it unlikely that Person C was inside with Person A for thirty minutes while Respondent waited outside, particularly in light of Respondent's own acknowledgement that Person C and Person A didn't get along and tried to avoid talking with each other. Respondent also

pointed to the evidence that Dr. Larnstein, the department psychologist, found Person A incredible regarding other incidents. However, this tribunal is not prepared to discredit Person A's statement where there was no evidence establishing the underlying basis for the doctor's conclusion. It is apparent that there is a troubled history between Respondent and Person A, and when Person A described that history in her recorded interview, there was no indication of any credibility issues, nothing to suggest that she was fabricating her account.

Based on the credible statement of Person A, corroborated by the photographs and testimony as to her injuries, I find Respondent guilty of Specification No. 1: Respondent, knowing that Person A was leaning into his car, did drive the vehicle forward, causing Person A to fall to the ground and suffer multiple injuries.

However, as the Department Advocate conceded before opening statements, Specification No. 2 "could have probably been merged" with Specification No. 1 since "those two allegations essentially read the same." (Tr. 3) Since there is no additional wrongful conduct alleged in connection with this specification, and it essentially is duplicative of the first, Specification No. 2 is dismissed.

Specification No. 3 alleges that Respondent left the scene after causing injury to Person A with his vehicle. Since this tribunal finds that Respondent drove his car forward while aware that Person A was leaning inside, he had reason to know that personal injury may have been caused to Person A. Even though Person A went back inside the house, Respondent had an obligation to remain at the location and report what had transpired so that a proper investigation could occur, and so that Person A could receive whatever medical attention was appropriate. Instead, Respondent got back into his car and drove

away. As such, the Department has proven by a preponderance of the evidence that Respondent did, in fact, wrongfully leave the scene after causing injury to Person A, and I find him guilty of Specification No. 3.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 N.Y.2d 222 (1974). Respondent was appointed to the Department on July 14, 2009. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Department asks that Respondent forfeit thirty (30) days already served on suspension, and receive counseling, as the appropriate penalty. This tribunal agrees with that recommendation, and agrees that counseling would be a productive step toward preventing a recurrence. In *Disciplinary Case No.* [REDACTED] a 10-year officer with no disciplinary history negotiated a penalty of thirty (30) suspension days already served, one year dismissal probation, and counseling for engaging in an off-duty altercation [REDACTED]; the officer grabbed [REDACTED] and threw her into a closet door in the presence of their three-year old son and three-month old daughter.

A lesser penalty was imposed in *Disciplinary Case No.* [REDACTED] where a 24-year deputy inspector with no disciplinary record negotiated a plea of 15 vacation days and counseling for a similar set of circumstances: after an argument, [REDACTED] jumped on the hood of Respondent's car, and Respondent continued to drive before abruptly stopping, causing [REDACTED] to fall off the hood and injure herself.

There are, however, some distinguishing characteristics with the present case:

Respondent here has only been with the department for six years, and the woman involved in this incident was 38-weeks pregnant

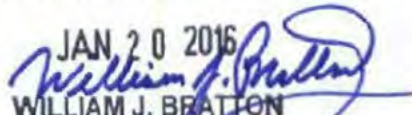
Although Respondent has no disciplinary history, it is disturbing that this officer, responsible for ensuring the safety of others, would show such a blatant disregard for the well-being of the complainant in this case. After considering the totality of the circumstances here, I recommend that the penalty be the forfeiture of the thirty (30) days already served on pre-trial suspension.

Respectfully submitted,



Jeff S. Adler
Assistant Deputy Commissioner - Trials

APPROVED

JAN 20 2016

WILLIAM J. BRATTON
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER JULIO JIMENEZ
TAX REGISTRY NO. 948358
DISCIPLINARY CASE NO. 2014-11908

Respondent was appointed to the Department on July 14, 2009. His last three annual evaluations were 3.5 overall ratings of “Highly Competent/Competent” in 2012 and 2014 and a 4.5 rating of “Extremely/Highly Competent” in 2013. He has received one medal for Excellent Police Duty.

Respondent has no prior formal disciplinary history. He was placed on Level 2 Disciplinary Monitoring in connection with the incident that is the subject of the instant charges and specifications.



For your consideration.

A handwritten signature in blue ink, appearing to read "Jeff Adler".

Jeff S. Adler
Assistant Deputy Commissioner – Trials